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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

**STATE’S REPLY IN SUPPORT OF
STIPULATED MOTION TO
CLASSIFY TRANSCRIPT AND
AUDIO AS PRIVATE**

Case No. 251403576

Judge Tony F. Graf, Jr.

The State provides the following reply supporting the parties’ stipulated motion to classify the October 24, 2025, hearing transcript (Transcript) and audio as private.

INTRODUCTION

Prospective Media Intervenors ask the Court to make the Transcript “public with limited, if any, redactions.” Opp. at 16 (bolding and capitalization omitted). The State agrees and has proposed (together with Defendant) limited redactions of matters that plainly qualify for non-public classification. From an 82-page transcript, the parties agree

that only 108 lines, or just over four pages, should be redacted, while the rest of the Transcript should be made public.¹

As explained below, the redactions the State has proposed are necessary to protect court security, which in turn protects personal and public safety, all well-established justifications for protecting court documents.

ARGUMENT

As the Court’s administrative rules require, documents discussing court security measures should be protected from public disclosure.

Documents that discuss court security measures should not be publicly accessible. This Court’s administrative rules make this clear. “[C]ourt security plans” are expressly classified as “protected” records. Utah R. Jud. Admin. 4-202.02(5)(F). The administrative rules also classify as “protected” a “record created or maintained for ... criminal ... enforcement purposes ... if the record reasonably could be expected to ... concern the security of a court facility.” *Id.* 4-202.02(5)(J)(iv). The Transcript at issue falls squarely within that category.

The provisions in the administrative rules on the Judicial Council’s ability to hold open and closed meetings further underscore that court security measures should not be public. While Council meetings are presumptively public, the Council may hold a closed meeting “for discussions regarding ... deployment of security personnel or devices.” Utah R. Jud. Admin. 2-103(4)(F). And while the rules require recording and the taking of

¹ The State also has no objection to making public a copy of the audio recording of the hearing if the recording is likewise redacted.

minutes at some closed meetings, that is expressly not the case with meetings to discuss court security. *See id.* 2-103(5). “The recording and minutes otherwise required ... shall not be made if a meeting is closed to discuss ... the deployment of security personnel or devices.” *Id.* 2-103(5).

For purposes of resolving the current dispute before the Court, the administrative rules also explain the analysis and findings necessary to justify protecting a court record. *See Utah R. Jud. Admin.* 4-202.04(6). “When deciding whether to allow access to a court record ... or to redact information from the record, the court may consider any relevant factor, interest, or policy, including but not limited to the interests described in Rule 4-202.” *Id.* 4-202.04(6). A court must then: “(A) make findings and conclusions about specific records; (B) identify and balance the interests favoring opening and closing the record; and (C) if the record is ordered closed, determine there are no reasonable alternatives to closure sufficient to protect the interests favoring closure.” *Id.* 4-202.04(6)(A)-(C).

A decision to approve the State’s requested redactions rests on solid ground. Court security measures exist to protect the safety of all involved in the court process. Rule 4-202 expressly recognizes that restrictions on public access will further this important interest. *See Utah R. Jud. Admin.* 4-202(2)(B). Next, the State’s requested redactions listed in the parties’ Joint Status Report identify the specific lines of the Transcript that discuss court security measures. The Court can therefore easily focus its analysis, findings, and conclusions on these specific portions of the Transcript. *See id.* 4-202.04(6)(A) (requiring findings and conclusions about specific records).

As for balancing the competing interests, that balance weighs in favor of restricting public access. While the public does have an interest in accessing court records and proceedings generally, the justifications for such access do not apply at all, or at least with the same force, to court documents discussing security measures. Public access to court records serves many purposes, including “to educate the public about the workings of government,” “to contribute to informed debate,” “to hold public officers and employees accountable,” “to increase public confidence,” and “to give notice of important claims, rights and obligations.” Utah Code Jud. Admin. R. 4–202(1) (providing an illustrative list of the purposes served by open court records). But court documents discussing security measures do not implicate any of these interests, because they do not concern the court process or the adjudication of any particular issue.

Moreover, public disclosure of court security measures defeats, or at least severely undermines, the purposes of those measures. Security vulnerabilities necessarily compromise personal and public safety, interests that Rule 4-202 expressly recognize as favoring restrictions on access to court documents. *Id.* 4-202(2)(B). This is why the administrative rules classify documents discussing security plans as protected. *See id.* 4-202.02(5)(F) (court security plans are protected); 4-202.02(5)(J)(iv) (records concerning court facility security are protected). To the extent there are competing interests, the balance therefore weighs heavily in favor of restricting access to documents concerning court security measures.

Finally, there are “no reasonable alternatives to closure sufficient to protect the interests favoring closure.” *Id.* 4-202.04(6)(C). As explained, any disclosure of court

security measures undermines their purpose and jeopardizes safety. The relevant factors therefore heavily favor redacting those portions of the Transcript the State has identified.

CONCLUSION

The Court should classify as public the Transcript of the October 24, 2025, hearing, except for those limited portions the parties have identified should be redacted.

Dated December 9, 2025.

Utah County Attorney's Office

s/ Christopher D. Ballard
Christopher D. Ballard
Deputy Utah County Attorney

Counsel for Plaintiff

CERTIFICATE OF SERVICE

I certify that on December 9, 2025, I filed the foregoing **STATE’S REPLY IN SUPPORT OF STIPULATED MOTION TO CLASSIFY TRANSCRIPT AND AUDIO AS PRIVATE** through the court’s electronic filing system, which served a copy on all counsel of record. I also emailed a copy to counsel for the interested news media as follows:

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